



Vision

"To be a global leader in promoting good corporate governance"

Motto

सत्यं वद। धर्मं चर। इष्टं कुरु। कुरुते। कुरुते। कुरुते।

Mission

"To develop high calibre professionals facilitating good corporate governance"

Info Capsule

Wednesday, February 19, 2025

President

CS Dhananjay Shukla

Vice President

CS Pawan G Chandak

❖ Ministry of Labour & Employment

Ministry of Labour & Employment Signs MoU with APNA to Boost Job Opportunities (February 18, 2025)

In a major step towards enhancing employment prospects for young job seekers, the Ministry of Labour & Employment (MoLE) has signed an MoU with APNA, one of India's leading job recruitment platforms. This partnership will bring over 10 lakh job opportunities annually to the National Career Service (NCS) Portal, strengthening domestic employment avenues.

The NCS Portal serves as a vital bridge between job seekers and employers, with 40 lakh+ registered employers and 4.40 crore vacancies mobilized since its launch. At any given time, nearly 10 lakh vacancies are available, ensuring a steady flow of opportunities.

For details:

<https://pib.gov.in/PressReleasePage.aspx?PRID=2104448>

❖ Competition Commission of India

- **Commission approves amalgamations of Chaitanya India Fin Credit Private Limited and Svatantra Holdings Private Limited into Svatantra Microfin Private Limited (February 18, 2025)**

The proposed transaction relates to the amalgamation of Svatantra Holdings Private Limited (SHPL) and Chaitanya India Fin Credit Private Limited (CIFCPL) into Svatantra Microfin Private Limited (SMPL), through the Scheme of Amalgamation entered into between SHPL, CIFCPL, SMPL and their respective shareholders as has been approved by the board of directors. Further, as a consequence of the foregoing, Svatantra Micro Housing Finance Corporation Limited (SMHFCL) will become a wholly owned subsidiary of SMPL. SHPL is engaged in the business of making investments in equity shares, preference shares and other securities. It is an unregistered Core Investment Company in terms of Core Investment Companies (Reserve Bank) Directions, 2016.

For details:

<https://www.cci.gov.in/media-gallery/press-release/details/488/0>

- **Competition Commission of India (CCI) approves the acquisition of certain interest in Blackwater Coal Mine by NS Blackwater Pty Limited and JFE Steel Australia (BW) Pty Ltd. (February 18, 2025)**

The Proposed Combination envisages the acquisition of 20% and 10% interest in Blackwater Coal Mine (BW Coal Mine) by NS Blackwater Pty Limited (NS Blackwater) and JFE Steel Australia (BW) Pty Ltd. (JFE Steel BW), respectively. NS Blackwater is a newly incorporated special purpose vehicle formed for the purposes of the Proposed Combination. It is ultimately owned by Nippon Steel Corporation. JFE Steel BW is a newly incorporated special purpose vehicle formed for the purposes of the Proposed Combination. It is ultimately owned by JFE Holdings, Inc.

For details:

<https://www.cci.gov.in/media-gallery/press-release/details/487/0>

❖ *ESG Update*

American Express Company

Moving Toward Net-Zero Emissions

In August 2024, the Science Based Targets initiative (SBTi) validated American Express' net-zero target, consisting of both near-term and long-term emissions reduction targets. The SBTi also validated American Express' near-term partner engagement target. Its updated targets now reflect a commitment to net-zero emissions by 2050 in alignment with the SBTi and incorporate ongoing learnings about its emissions profile across the value chain and the relationship of those emissions to evolving science-based standards.

For details: https://www.americanexpress.com/content/dam/amex/en-us/newsroom/pdfs/AXP_2023_2024_ESG_Report.pdf

❖ *Insurance Regulatory and Development Authority of India*

One-time Mandate for blocking the amount towards premium through Unified Payments Interface (UPI mandate) for issuance of life and health insurance policies- Bima-ASBA (February 18, 2025)

Based on the requests/representations received by IRDAI from the insurers towards bringing about operational ease in meeting with this requirement to facilitate smooth transactions of payment of premium, facility of the Unified Payments Interface (UPI) One Time Mandate (OTM) is enabled to be used by insurers. This feature allows users to block funds in their bank accounts for specific transactions, ensuring availability of funds while deferring actual payments. This service is useful in multiple scenarios where the customer prefers to authorize a block on funds without immediate debits, facilitating smoother transaction processing.

For details: <https://irdai.gov.in/web/guest/document-detail?documentId=6743177>

❖ *Ministry of Electronics and Information Technology*

MeitY to Launch Digital Brand Identity Manual (DBIM) Aiming to Achieve Uniform Look & Feel in Government Websites (February 17, 2025)

Ministry of Electronics and Information Technology (MeitY) is set to release the Digital Brand Identity Manual (DBIM) as part of its efforts to bring uniformity across government websites and digital platforms. The DBIM defines key elements of a consistent digital identity, including visual identities such as logos, color palettes, typography, and imagery, as well as verbal identities like brand voice, messaging frameworks, and taglines. The primary objective of the DBIM is to create a unified and consistent digital brand for the Government of India. By standardizing elements such as color palettes, typography, and iconography, the manual not only ensures uniformity in look and feel but also strengthens the integrity of government-hosted data.

For details: <https://pib.gov.in/PressReleasePage.aspx?PRID=2104185>

❖ **Reserve Bank of India**• **Launch of the RBIDATA Mobile App by RBI (February 18, 2025)**

The Reserve Bank of India launched RBIDATA, a Mobile App, that offers macroeconomic and financial statistics relating to the Indian economy in a user-friendly and visually engaging format. This app offers quick access to the Database on the Indian Economy (DBIE – <https://data.rbi.org.in>) portal and aims to serve the researchers, students, and the general public. It is available for both iOS and Android users (version 12 and above). The app also lets users provide feedback to improve its functionality.

For details: <https://website.rbi.org.in/web/rbi/-/press-releases/launch-of-the-rbidata-mobile-app-by-rbi>

• **Reserve Bank of India (Prudential Regulations on Basel III Capital Framework, Exposure Norms, Significant Investments, Classification, Valuation and Operation of Investment Portfolio Norms and Resource Raising Norms for All India Financial Institutions) Directions, 2023 – Amendment (February 17, 2025)**

RBI reviewed the above-mentioned Direction 2023 and decided that investments made by All India Financial Institutions (AIFIs), as per their statutory mandates, in long-term bonds and debentures (i.e., having minimum residual maturity of three years at the time of investment) issued by non-financial entities shall not be accounted for the purpose of the ceiling of 25 per cent applicable to investments included under Held to Maturity (HTM) category, specified under the Directions *ibid*. Accordingly, the relevant instructions have been amended.

For details:

<https://website.rbi.org.in/web/rbi/-/notifications/reserve-bank-of-india-prudential-regulations-on-basel-iii-capital-framework-exposure-norms-significant-investments-classification-valuation-and-operation-of-investment-portfolio-norms-and-resource-raising-norms-for-all-india-financial-instit>

❖ **Business and Economy**• **US SEC requests help from Indian authorities in Adani fraud probe (February 19, 2025)**

The US Securities and Exchange Commission has requested assistance from Indian authorities in its investigation of Adani Group founder Gautam Adani and his nephew Sagar Adani over alleged securities fraud and a \$265 million bribery scheme, a court filing showed on February 18, 2025. The SEC told a New York district court its efforts to serve its complaint to Gautam and Sagar Adani were ongoing and that it is seeking help from India's Ministry of Law and Justice to serve its complaint to Gautam and Sagar Adani.

For details: https://www.business-standard.com/companies/news/us-sec-requests-help-from-indian-authorities-in-adani-fraud-probe-125021900034_1.html

• **Unemployment rate in urban areas drops to 6.4% in Oct-Dec 2024 quarter (February 18, 2025)**

The unemployment rate for people aged 15 years and above in urban areas dipped to 6.4 per cent in the October-December quarter. The unemployment rate in the December quarter of the current Financial Year was 6.5 per cent. Ministry of Statistics and Programme Implementation said the labour Force Participation Rate in urban areas among persons aged 15 years and above has increased to 50.4 per cent in the October – December quarter of 2024. It was from 49.9 per cent during the October – December quarter in 2023.

For details: <https://www.newsonair.gov.in/unemployment-rate-in-urban-areas-drops-to-6-4-in-oct-dec-2024-quarter/>

❖ **Pronouncement**

February 17, 2025.	Western Coal Fields Ltd. (Appellant) Vs. Manohar Govinda Fulzele (Respondent)	Supreme Court of India Civil Appellate No.2608 of 2025 (@ Special Leave Petition (C) No.10088 of 2020)
---------------------------	--	---

Gratuity may be forfeited in the event of termination of service on misconduct, involving moral turpitude; without criminal conviction

Hon'ble Supreme Court inter alia observed that an 'Offence' as defined in the General Clauses Act, means 'any act or omission made punishable by any law for the time being' and does not call for a conviction; which definitely can only be on the basis of evidence led in a criminal proceeding. The standard of proof required in a criminal proceeding is quite different from that required in a disciplinary proceeding; the former being regulated by a higher standard of 'proof beyond reasonable doubt' while the latter governed by 'preponderance of probabilities. The provision of forfeiture of gratuity under the Act does not speak of a conviction in a criminal proceeding, for an offence involving moral turpitude. On the contrary, the Act provides for such forfeiture; in cases where the delinquent employee is terminated for a misconduct, which constitutes an offence involving moral turpitude. Hence, the only requirement is for the Disciplinary Authority or the Appointing Authority to decide as to whether the misconduct could, in normal circumstances, constitute an offence involving moral turpitude, with a further discretion conferred on the authority forfeiting gratuity, to decide whether the forfeiture should be of the whole or only a part of the gratuity payable, which would depend on the gravity of the misconduct. Necessarily, there should be a notice issued to the terminated employee, who should be allowed to represent both on the question of the nature of the misconduct; whether it constitutes an offence involving moral turpitude, and the extent to which such forfeiture can be made. There is a notice issued and consideration made in the instant appeals; the efficacy of which, has to be considered by us separately.

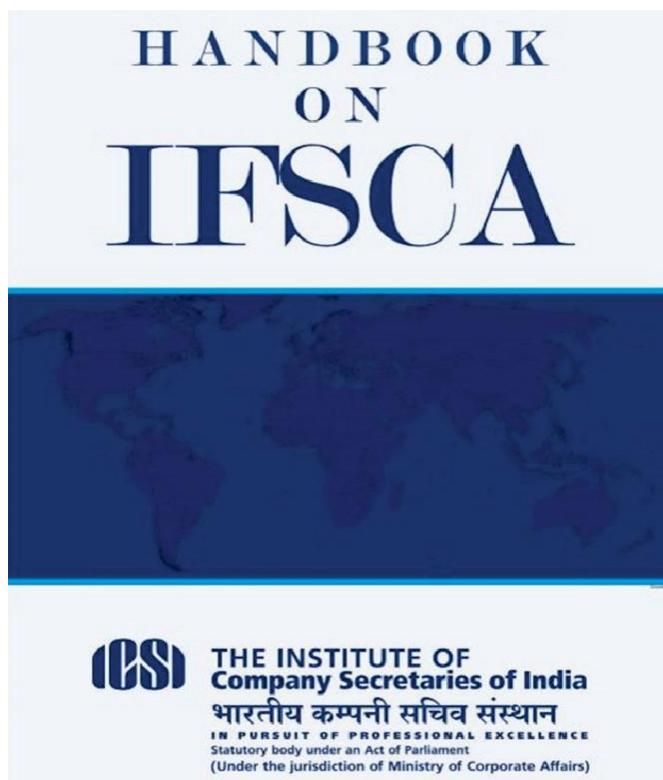
In the present case it has been proved that the petitioner suppressed his actual date of birth. The failure of the employer to initiate a criminal proceeding on the fraud employed by way of the fabricated/forged certificate produced for the purpose of employment, does not militate against the forfeiture. Obviously, as coming out from the provision, no conviction in a criminal proceeding is necessitated, if the misconduct alleged & proved constitutes an offence involving moral turpitude the Court opined.

For details:

https://www.sci.gov.in/view-pdf/?diary_no=168702020&type=j&order_date=2025-02-17&from=latest_judgements_order

❖ **Market Watch**

Stock Market Indices as on 18.02.2025		Foreign Exchange Rates as on 18.02.2025 (https://m.rbi.org.in/scripts/ReferenceRateArchive.aspx)			
S & P BSE Sensex	75939.18(-0.04%)	INR / 1 USD	INR / 1 EUR	INR / 1 GBP	INR/ 1 JPY
Nifty 50	22932.90(-0.05%)	86.97	90.95	109.57	.57

HANDBOOK ON IFSCA**About the Book**

The publication 'Handbook on IFSCA' has been issued with a view to acquaint members with the developments at the IFSCA and enable them to discharge their roles effectively. The publication contains brief overview of the IFSCA, the IFSCs, opportunities at IFSC, benefits for operating at IFSC, recognitions for the CS Profession, brief background of regulations, suggestive formats, checklists, etc.

Year of Publication: 2023

Price: Rs. 300/-



Weblink for Purchase:

<https://smash.icsi.edu/Scripts/ECart/Default/ItemWiseECartSearchOnlineBooks.aspx?ItemId=285>

CHARTER OF AUDIT COMMITTEE**About the Book**

The Charter of the Audit Committee outlines legal, regulatory, and recommended best practices for the Committee's operations. It includes guidelines for approving related party transactions, a key area of focus from a governance perspective.

Year of Publication: 2023

Price: Rs. 150/-



Weblink for Purchase:

<https://smash.icsi.edu/Scripts/ECart/Default/ItemWiseECartSearchOnlineBooks.aspx?ItemId=281>

Prepared by Directorate of Academics

For any suggestions, please write to academics@icsi.edu.

Disclaimer: Although due care and diligence have been taken in preparation and uploading this info capsule, the Institute shall not be responsible for any loss or damage, resulting from any action taken on the basis of the contents of this info capsule. Anyone wishing to act on the basis of the material contained herein should do so after cross checking with the original source.